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Proposal for a
REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL
EU KIDS ACT - 'EU Keeping Internet Digital Spaces Accountable and Trustworthy'

{SWD(2026) 681 final}

EXPLANATORY MEMORANDUM

1.

CONTEXT OF THE PROPOSAL

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Reasons for and objectives of the proposal

Only half of children aged 9-16 across Europe say they feel safe online. The risks faced by minors online are real and urgent, and impact their health, development and wellbeing, such as for example reduced physical activity, increased risk of myopia and reduced sleep, depressive and anxious symptoms, decrease self-esteem, negative impact on learning and cognitive development, eating disorders, decreased empathy, loneliness and addictive behaviours. Minors online also face risks of cyberbullying, child sexual abuse and grooming.

The protection of minors online is a political priority of the Commission. In her 2025 State of the Union, Commission President Ursula von der Leyen announced that she will commission a panel of experts to advise her on the best approach for Europe on child safety online. After a process in the first half of 2026 involving a wide range of experts from different fields, as well as representatives from industry, parents and youth, the co-chairs of the Special panel presented their recommendations to the President in July 2026. The recommendations set out a clear path for enhancing the safety of minors online and ensuring the functioning of the Single Market. In particular, they recommend an EU-wide access restriction, harmonised safety-by-design rules as well as proportionate, privacy-preserving age assurance systems. Finally, they recommend covering digital services beyond social media platforms, including app stores, AI companions and some video games and video-sharing platforms offering risky features.

In October 2025, the Jutland Declaration signed by 25 Member States called for age verification and for a safer online environment for minors. In its conclusions of March 2026 and of October 2025, the European Council also stressed the importance of protecting minors online, including through a digital age of majority. In its report of November 2025 on the protection of minors online, the European Parliament called for a harmonised European digital age limit of 16 years for access to social media, video-sharing platforms and AI companions unless parents or guardians have authorised their children otherwise. It also called upon a harmonised European digital age limit of 13, under which no minor can access social media platforms. The European Parliament also recognised the need for additional legislation on age-appropriate design and safety by design. It further called for a European approach regarding age assurance ensuring legal certainty.

Across the European Union, Member States are discussing or proposing national legislation to enhance the safety of minors online. Italy, France, Norway, Greece, Austria, Poland and Belgium notified in 2025 and 2026 their draft legislation limiting access to certain digital services for minors under a certain age. Norway also notified its legislation in May 2026. In almost all other Member States, consultations are ongoing, drafts are discussed in national parliaments or have been announced by governments. Proposed national draft legislations differ in terms of scope, age limits and types of restrictions imposed, risking fragmenting the single market, reducing legal certainty and increasing compliance costs while providing an uneven level of protection for minors across the European Union.

The current online environment is not designed with minors in mind. While legislation already exists to create a safer online environment, no single legislation takes the children and their safety and empowerment as the starting point. Building on the key principles set out in Regulation (EU) 2022/2065 and Regulation (EU) 2024/1689, this proposal seeks to protect

minors from risky digital services and AI systems, uphold the digital single market and maintain a coherent regulatory framework and enforcement structure for the protection of minors online.

The proposal recognises the risks that minors face on certain online social networking services and video-sharing platforms and therefore limits autonomous account creation on those specific platforms and systems by children below the age of 15 years. By providing one age across the European Union, it harmonises diverging national rules removing obstacles to the implementation of the Digital Single Market, ensuring legal certainty and a similar level of protection for all children in the European Union. This is combined with rules that recognise the role of parents and legal guardians in supporting the safe development of minors online, by creating accounts with limited functionalities for minors on from 13 years as well as rules to create an environment of safe services and systems for very young children with strict parental supervision and which takes into account their development. In line with the developmental approach recommended by the co-chairs of the Special Panel on Child Safety Online, minors below the age of 13 should not have access to harmful online social networking services and video-sharing platform services.

The proposal sets out clear safety by design requirements for online social networking services, video-sharing platform services, online games, AI companions and general conversational chatbots, and software application stores. Building on the recommendations of the co-chairs of the Special panel, it harmonises and extends those requirements ensuring legal certainty across the Digital Single Market and a high level of protection for minors across the digital environment, taking into account that business models are constantly changing in this dynamic field and loopholes must be avoided.

To underpin the access delay and the implementation of safety by design requirements, the proposal establishes a clear framework for age assurance with clear criteria and safeguards for the use and deployment of such systems. By enshrining requirements for the use of age assurance methods, the proposal ensures that the use of those methods will be proportionate, effective, reliable and privacy-preserving. It also provides for common criteria for age assurance ensuring the functioning of the Single Market.

A fast, effective and robust enforcement is critical to the protection of minors online and the functioning of the Single Market. The proposal therefore lays out an enforcement framework that relies on existing enforcement structures while providing for a an expedited enforcement procedure.

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Consistency with existing policy provisions in the policy area

The proposal builds on the existing legislative framework for the protection of minors online ensuring the functioning of the Single Market. By building on Regulation (EU) 2022/2065 and Regulation (EU) 2024/1689, it provides continuity and coherence with the EU regulatory framework for digital services and AI systems while developing specific requirements for the protection of minors online taking into account their evolving capacities, safety and empowerment as a starting point.

This proposed Regulation is without prejudice to the Digital Services Act, and builds on the provisions laid down therein, notably on Article 28 regarding the obligation for certain providers of online platforms to take appropriate measures to ensure a high level of privacy, safety and security for minors. The proposed instrument, and in particular its provisions related to safety by design, set in ?hard law? those specifications that the Commission has

already included in the Guidelines on protection of minors under Regulation (EU) 2022/2065. In doing so it specifies the obligations set out in Article 28 of Regulation (EU) 2022/2065 where these concern safety by design and age assurance requirements. Therefore, ongoing cases related to these obligations under Regulation (EU) 2022/2065, in particular Article 28, remain unaffected. The proposed Regulation is also without prejudice to Regulation (EU) 2024/1689 and builds on its framework, notably on its comprehensive risk-based rules. The proposed Regulation is complementary and does not affect the prohibitions and other obligations and requirements for AI systems and general-purpose AI models already established in Regulation (EU) 2024/1689.

The Better Internet for Kids strategy (BIK+) supports the implementation of this legislative framework, notably Regulation (EU) 2022/2065. Under the BIK+, the EU co-funded network of Safer Internet Centres offers training sessions, helplines and hotlines and run awareness raising activities. They regularly consult children and young people on their needs and view on online safety. In February 2026, the Commission adopted the Action plan against cyberbullying to prevent cyberbullying, raise awareness and make it easier to report and ensure that victims receive adequate support. The proposal is consistent with those non-legislative actions, and builds upon them to give kids in Europe the best support when they use the online environment.

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Consistency with other Union policies

The proposed Regulation introduces a horizontal framework for the protection of minors online. This Regulation is without prejudice to the rules laid down by other Union legal acts regulating other aspects of the provision of intermediary services in the internal market, in particular, the rules on audiovisual media services, consumer protection and product safety, and on the protection of personal data.

The proposal will be complemented by further actions which would be in full alignment with this Regulation, including the ongoing evaluation and upcoming review of the Audiovisual Media Services Directive that will additionally look at the protection of minors as viewers and will ensure that they are sufficiently protected when watching audiovisual content. Considering new threats and risks, it will examine whether further specification of the concept of harmful audiovisual content is needed, and what measures are necessary to ensure that minors do not encounter such content.

Furthermore, the upcoming Digital Fairness Act (?DFA?) aims at strengthening and making consumer protection law fit for purpose, also in the digital environment, in full alignment with the obligations in this Regulation. Consumer law plays an important role in ensuring that consumers, children in their consumer role included, are not exposed to unfair or misleading practices. The Unfair Commercial Practices Directive (?UCPD?) in particular acknowledges children as vulnerable consumers that need enhanced protection; it also bans a direct exhortation to children to buy advertised products or persuade their parents or other adults to buy those products for them. Furthermore, as part of the revision of the existing consumer protection law, the CPC Regulation will also be revised to strengthen the existing enforcement coordination system for national authorities and vest in the Commission direct investigation and enforcement powers in specific cases.

Additionally, the recent changes to Regulation (EU) 2024/1689 prohibiting AI systems generating child sexual abuse material, the on-going adoption of Regulation to prevent and combat child sexual abuse, together with the recently adopted Recast of the Child Sexual

abuse directive, strengthens the EU framework against child sexual abuse and exploitation, both online and offline. They will improve prevention, investigation and support for victims.
The proposal is also fully consistent and further supports existing or upcoming initiatives to empower and support minors and ensure their well-being online, including the EU Strategy on the rights of the child8, the Commission Recommendation on developing and strengthening integrated child protection systems in the best interests of the child9, the Digital Education Action Plan (2021-2027)12, as well as the forthcoming 2030 Roadmap on the future of digital education and skills.
Child safety online is a global challenge requiring international cooperation. The proposal is consistent with the Union?s external policies, including the International Digital Strategy (2025) through which the EU expands and deepens its cooperation bilaterally, regionally and multilaterally. The proposal harmonises legislation EU-wide which will support the effectiveness of the EU?s external cooperation and global influence in child safety online.
2.
LEGAL BASIS, SUBSIDIARITY AND PROPORTIONALITY
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Legal basis
The legal basis for the proposal is Article 114 of the Treaty on the Functioning of the European Union, which provides for the establishment of measures to ensure the functioning of the Internal Market. This proposal aims to approximate rules with the objective to establish the functioning of the Internal Market and, in accordance with article 114(3), ensuring a high level of protection for the health and safety of children across the European Union considering new technological developments.
The main objective of this proposal is to put in place harmonised provisions to protect minors online. As Member States are discussing or adopting new measures to restrict access to certain online platforms considered risky for children under a specified age, the EU market risks becoming increasingly fragmented. This proposal therefore aims to ensure the proper functioning of the internal market, in particular, in relation to the provision of cross-border online social networking services, video-sharing platform services, software application stores, of AI companions and general conversational chatbots, and of online games. Such a harmonised approach also ensures an equally high level of protection for minors across the EU.
Furthermore, this proposal specifies and complements the relevant provisions of Regulation (EU) 2022/2065 as regards the protection of minors, and complements Regulation (EU) 2024/1689 as regards child-specific safety requirements for AI companions and general conversational chatbots. Since both Regulation (EU) 2022/2065 and Regulation (EU) 2024/1689 have Article 114 of the Treaty on the Functioning of the European Union as a legal basis, this proposal follows the same approach.
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Subsidiarity (for non-exclusive competence)
Taking into account that digital services and AI systems are by their nature cross-border, the legislative efforts at national level mentioned above for delayed access of minors hamper the provision of digital services and systems cross-border, create legal uncertainty and obstacles to the implementation of the Single Market, high compliance costs and an unequal level of protection for minors across Europe.

The potential consequences in the absence of immediate action also call for urgent action. Member States are already adopting their own legislation. In 2025 and 2026, several TRIS notifications (Italy, France, Norway, Greece, Poland, Austria, Belgium) were received on age restrictions for certain types of digital services. In almost all other Member States, consultations are ongoing, drafts are discussed in national parliaments or have been announced by governments. National laws differ in terms of scope, age limits and types of restrictions imposed. They propose different definitions or criteria for the types of digital services whose access is to be limited, different ages limits (from 13 to 16 years old), eventually dependent on parental consent. Some of the national legislations under discussion include additional obligations on safety by design. The proliferation of national legislations, with different legal obligations, significantly risks fragmenting the Single Market, reducing legal certainty and increasing compliance costs for providers of digital services while providing an uneven level of protection for minors across the European Union.
Harmonising the rules to protect minors and provide them with a safe online environment should be done at Union level, thereby providing predictability and certainty, reducing compliance costs across Europe and ensuring that all minors, no matter where they live are served by a high level of privacy, safety and security online.
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Proportionality
The proposal aims to ensure a strong and coherent framework for the protection of minors online. It does so by introducing an EU-wide access restriction to social media+ for under 13-year-olds. The approach allows for the creation of parental accounts for children between 13 and 15 years. It provides for harmonised access to safe social networking services and video-sharing platforms as of 15 years old, combined with clear safety by design obligations and clear requirements and criteria for the use of age assurance.
The proposal takes the report of the co-chairs of the Special Panel on Child Safety as the starting point, which sets out clearly the risks that minors face online. Against that background, it puts in place a framework that tackles the risks on the services mentioned in the report, without disproportionately impacting fundamental rights (see section below).
Key features of the proposal limit the Regulation to what is strictly necessary to achieve the objectives of the proposal. In particular, the proposal sets out obligations on different types of digital services and systems, depending on the nature of the service or system to ensure that they are targeted and proportionate. This approach addresses the identified problems, while not overburdening providers unconcerned by such problems. The substantive obligations are limited to online social networking services, video-sharing platform services, online games, and providers of software application stores. Following a co-regulatory approach, they build on co-regulatory initiatives for the services in scope of this Regulation, including regarding software application stores and online games. As regards AI systems, the proposal is limited to AI companions and general conversational chatbots that may pose serious risks to health, safety and well-being of minors that are not covered by safety by design requirements specifically aimed to address those risks to minors under Regulation (EU) 2024/1689.
At the same time, small and micro enterprises are not exempted from this Regulation, since they may equally provide harms to minors. It would undermine the objective of this proposal to exclude them from scope.
Exempted from scope because they are unlikely to pose harms to minors are not-for-profit online encyclopaedias, not-for-profit educational and scientific repositories, services and

systems that are designed for purely educational purposes and operated within educational establishments or organisations, open-source software-developing and-sharing platforms, unless the platform itself constitutes an AI system in scope of this Regulation and Regulation (EU) 2024/1689, services and systems specifically developed and operated for the sole purpose of scientific research and development, and services and systems designed, developed and operated by public authorities and for exclusive use of said public authorities or on their behalf.

By establishing a clear framework, accompanied by cooperation between Member States, as well as by co-regulation, this proposal aims to enhance legal certainty, ensure the functioning of the Single Market and increase trust levels.

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Choice of the instrument

Article 114 of the Treaty on the Functioning of the European Union gives the legislator the possibility to adopt regulations and directives.

The Commission has decided to put forward a proposal for a Regulation to ensure a consistent level of protection for minors throughout the Union and to prevent divergences hampering the free provision of the relevant services and systems within the internal market. This is necessary to provide legal certainty and transparency for economic operators and children and parents alike.

3.
RESULTS
OF
EX-POST
EVALUATIONS,
STAKEHOLDER
CONSULTATIONS AND IMPACT ASSESSMENTS

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Stakeholder consultations

The proposal directly follows on the recommendations of the co-chairs of the Special Panel on Child Safety Online. As an independent process, the Special panel on child safety online examined risks and opportunities for children on digital services as well as the existing regulatory framework and its gaps. It gathered extensive data and expertise. This independent process brought together experts across the European Union from different fields, including health, child psychology and psychiatry, computer sciences, digital technology and media, social sciences and children?s rights. Representatives from youth groups, parents? group and children?s rights organisations also participated in the meeting. Additional stakeholders provided input throughout the process such as the OHCHR, specialised think-tanks, industry representatives as well as the European Data Protection Board.

Youth was also consulted in preparation of this proposal. The President Youth Advisory Group discussed child safety and wellbeing online in its meeting of December 2026, bringing together the views of children from across all 27 EU Member States. The Group brings together more than 30 young representatives, one from each?EU Member State?s National Youth Council, one from the European Youth Forum, and observers from candidate countries and potential candidates for EU accession. In December 2025, the Safer Internet Forum, which involved over 200 children, young people and representatives from?civil society,?industry?and national authorities discussed the topic??Why age matters: Protecting and empowering youth in the digital age?. Better Internet for Kids Youth ambassadors and youth representatives from the child participation platforms were also actively included in the Special panel. Across the groups, youth representatives emphasised the responsibility of digital services in providing safe and age-appropriate services. They highlighted the need for

requirements for safety by design, including age-appropriate defaults settings, recommender systems and interface design.
This consultative process is complemented by the Commission?s wider stakeholder engagement in the area of child safety online. This includes consultative processes undertook in the context of the implementation and enforcement of the Digital Services Act as well as the Better Internet for Kids Strategy and its network of Safer Internet Centres and Better Internet for Kids Youth Ambassadors. In the context of the adoption of the guidelines on the protection of minors under Regulation (EU) 2022/2065, a 2024 Call for Evidence, which received more than 170 feedbacks, and a 2025 public consultation, with more than 300 inputs, provided detailed information from a wide range of stakeholders including researchers, civil society, industry and public authorities on good practices and measures on online platforms to design a safe online service for kids. A majority of respondents shared positive view on the measures introduced by the Guidelines, which are largely codified by the present proposal. They also requested additional clarity on the legal nature of the guidelines, and on the situations under which age verification and age estimation are appropriate.
Between March and April 2026, the Commission conducted a Eurobarometer survey on the impact of excessive screen time and social media on young people?s mental health collecting data from more than 26,000 13-18 years old and more than 12,000 parents across all 27 Member States. The findings show that screen time is a major part of adolescent?s daily life, with major risks as nine in ten adolescents have encountered at least one harmful or distressing piece of content online in the past three months, with concerns also regarding interpersonal harms and cyberbullying. 54% of parents and 45% of 13-18 years old consider age delays to be an effective solution and 47% of parents and 48% of adolescents call for better implementation of existing rules by digital services.
Furthermore, the Commission is receiving additional evidence sources on a continuous basis from the European Board for Digital Services and the national Digital Services Coordinators who are responsible for supervising the smaller online platforms and ensuring they provide a safe environment for minors and who closely monitor this area on the ground.
Additional consultative processes where also conducted under related European initiatives, such as the Digital Fairness Act and the Audiovisual Media Services Directive. The consultation and call for evidence on the Digital Fairness Act was opened for 12 weeks on 17 July 2025, collecting extensive feedback from citizens, public authorities and other stakeholders, which collected relevant evidence on addictive design of digital products and deceptive or manipulative interface design, including the impact on such practices on minors. For instance, 5,000 children from the EU Children?s Participation Platform were consulted on digital fairness, under the EU Strategy on the rights of the child. Furthermore, on 10 February 2026 the Commission launched a public consultation for the assessment of the Impact of the audiovisual media services directive, collecting feedback from an equally wide range of stakeholders, including on the best ways to strengthen the protections for minors online. Both consultative processes provided relevant evidence for the purpose of this proposal.
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Impact assessment
The most important elements of this proposal build on a rich body of evidence from very different sources, including Impact Assessments informing other, either already adopted or forthcoming, legislative initiatives.

Therefore, the proposed Regulation and its accompanying Staff Working Document (?SWD?) on the impacts of the proposal are underpinned by a solid evidence base.
First, the Special panel on Child Online Safety brought together over 60 experts from various fields including health, child psychology and psychiatry, computer and social science, as well as representatives from youth groups, parents? groups and children?s rights organisations, and the co-chairs also met with the OHCHR, specialised think-tanks, industry and the European Data Protection Board.
Second, the dedicated analysis of impacts presented in the SWD builds on existing impacts assessments, including for the DSA, Digital Markets Act (?DMA?), AI Act, the proposal for a Regulation to prevent and combat child sexual abuse and the recast Directive on combating the sexual abuse and sexual exploitation of children and child sexual abuse material, as well as the upcoming Digital Fairness Act and the Audio-visual Media Services Directive (?AVMSD?).
Third, evidence and data are collected through implementation and enforcement of the DSA, notably 10 preliminary findings in relation to the protection of minors including on addictive design, safe accounts and age assurance, as well as studies, risk assessment reports and stakeholder engagement, in particular during the development of the guidelines on the protection of minors which involved a call for evidence, a public consultation, engagement with children and young people and meetings with the European Board for Digital Services. In this context, engagement with national authorities within the supervisory and enforcement framework of the DSA is ongoing. This provides valuable inputs from investigations and many Member States have conducted inquiries and consultations regarding their national draft laws on the protection of minors, such as Sweden and Germany.
Fourth, international engagement and cooperation further points to sources of evidence by public authorities as well as regulators. The Commission is closely cooperating with other regulators including from Australia and the UK that conduced impact assessments and studies, as well as Brazil and Japan.
Fifth, additional studies include a vast body of academic research, a Eurobarometer on the impact of excessive screen time and social media on young people?s mental health conducted in 2026 and a study procured by the Commission on the impacts of age assurance on fundamental rights and its economic costs.
The Commission prepared an accompanying analytical Staff Working Document, including (i) a problem definition, (ii) the explanation of the followed approach, and (iii) an assessment of impacts. The Staff Working Document builds on the report of the co-chairs of the Special panel, as well as evidence and data collected in the context of the Digital Services Act implementation and enforcement, and the preparation of impact assessments, notably for the Digital Fairness Act and the review of the Audiovisual Media Services Directive.
The Staff Working Document outlines the main social and economic impacts of the proposal. In terms of social impacts, the health of minors should be improved as both a direct and indirect impact of the proposal. By delaying access to certain specific services and providing safeguards for age-appropriate digital services, the online environment will become a safer place for minors, limiting the risks they encounter online and their impact on their cognitive development as well as their physical and mental health.

In terms of economic impacts, the marginal costs introduced by this proposal are expected to remain relatively limited with regard to the implementation of most safety by design requirements as these were already present in the Guidelines on the Protection of Minors under article 28 of the Digital Services Act. The requirements to prepare compliance plans and to rely on audits are largely included already in the risk assessments and audit provisions in the Digital Services Act. They also concern providers with a very large user base (45 million monthly active users) which should limit the impact on SMEs since, in principle, they do not reach a scale in their user base equivalent to that of very large online platforms. The implementation of age assurance measures and parental control tools will lead to additional costs for digital services providers. It is not possible to conclusively determine the costs of these adjustments and their incidence, especially for the potentially large number of small and micro providers of online social networking services, video-sharing platform services and video games that were previously not subject to article 28 of the Digital Services Act. However, those costs are mitigated by the development of the EU Age verification solution, the expected increased development of the market for safe design solutions and the fact that similar requirements already exist in EU law and increasingly in third countries. It should also be considered that many digital services providers would likely face many of these costs repeatedly under national legislation, and thus benefit from harmonized rules.
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Fundamental rights
The proposal aims at improving, promoting and supporting the respect of the rights of the child online, as enshrined in the Charter of Fundamental Rights of the European Union (?the Charter?). The objective of the access delay is to ensure the comprehensive rights of the child online, including their rights to protection necessary for their wellbeing, health and security, privacy, participation, express their views freely, in line with their age and maturity, taking their best interests as a primary consideration, ensuring their right to development and self-determination free from the risks and harms posed by certain online services and systems. While the services in scope of this Regulation pose significant risks to the health and security of children, they also allow children to express their views freely and to receive and impart ideas, as protected by Article 24(1) and Article 11(1) of the Charter. Therefore, the access delay is strictly limited to account creations on a very defined set of digital services and systems that use certain design features and make available certain functionalities to minors that are proven to be harmful to the health and safety of minors. This measure ensures that this limitation on the child?s right to freedom of expression remains proportionate and necessary to meet the objective of general interest as required by the Charter. Access to services that are safe, age-appropriate, designed for children and allow for the appropriate parental control and supervision should not be limited. Additionally, exceptions to the delay are provided to ensure access to information, educational materials and public services.
In line with the UN Committee on the Rights of the Child General comment 25, safety by design requirements are established to ensure the respect of the rights of the child online. Safe settings will provide additional privacy to children, while limited contacts with strangers will diminish risks of cyberbullying and grooming.
Parents and guardians also play an important role in the upbringing and development of their children, as recognised by Article 24(3) of the Charter of Fundamental Rights of the European Union. The respect for private and family life, home and communication is safeguarded by Article 7 of the Charter. Article 14(3) of the Charter ensures that the freedom to found educational establishments with due respect for democratic principles and the right of parents to ensure the education and teaching of their children in conformity with their religious, philosophical and pedagogical convictions shall be respected, in accordance with the national

laws governing the exercise of such freedom and right, while ensuring the respect of other fundamental rights enshrined in the Charter, including Article 21 on non-discrimination and Article 24 on children?s rights, taking their best interests as a primary consideration.

In recognition of this important role of parents and guardians, the proposal mandates tools for guardians and provides the possibility for parents to set up accounts in a safe environment for 13-15 years old minors. Those tools must be provided in line with the evolving capacities of children, and in respect with their rights to privacy.

Equally, this Regulation ensures respect of children?s rights by strengthening their autonomy. The Regulation requires providers of digital services and systems in scope to provide easy to access and child friendly reporting systems. They must ensure that reports from minors and guardians are addressed as a priority. The Regulation also allows further control over minors? settings. Furthermore, the proposal helps children in their digital education, literacy and support from parents, caregivers, teachers and educators by providing for Member States to develop national strategies to support the objectives of protecting children online.

Age assurance systems and the requirement to verify the age of users can potentially have important implications for the right to privacy, as well as freedom of expression, participation and non-discrimination of the users. The proposal establishes clear requirements for the deployment and use of age assurance systems as well as safeguards and transitional measures to limit the impact on these fundamental rights to what is strictly necessary to safeguard the health and safety of minors online. These criteria include a high level of accuracy, reliability, robustness, security, non-discrimination and non-intrusiveness. Following a risk-based approach and ensuring proportionality, age verification is only mandated for the implementation of the access delay and limited to new accounts and existing accounts only when the provider cannot tell with a high degree of confidence that the holder of the account is above the age threshold. By enshrining those criteria in law, the proposal provides for clear legal standards for the use and deployment of age assurance systems ensuring a high standard of data protection for their use. This will promote the deployment of an innovative market of age assurance solutions within the Digital Single Market respectful of fundamental rights.

4. BUDGETARY IMPLICATIONS

It is important that the Commission is sufficiently staffed to carry out the activities under this Regulation. This is especially important because, in exercising its tasks, the Commission will have to supervise some of the financially strongest and technologically most sophisticated companies in the world. Supervising these companies will require staff with highly skilled and specialised profiles. The Commission faces a high political risk if enforcement is under-resourced. Calls for quick action to protect European children online are growing, and making sure that the next generation is effectively protected requires adequate staffing ? also to deliver on the fast-track enforcement that will be required by this Regulation.

In order to do so the Commission will rely on the supervisory fee as established in Article 43 of the Digital Services Act. Since this proposal is a specification of the Digital Services Act, its resourcing should equally be based on the same supervisory fee. Further details on the budgetary implications are set out in the LFDS.

5.
OTHER ELEMENTS
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Implementation plans and monitoring, evaluation and reporting arrangements
The proposal will be rigorously evaluated, notably in terms of the effectiveness of the access delay, the personal scope of the access delay and its proportionality and the safety by design requirements. This evaluation shall account for experience gained in the implementation of the proposal as well as technological, market and legal developments.
This will complement ongoing monitoring under the Digital Services Act.
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Detailed explanation of the specific provisions of the proposal
Chapter I sets out general provisions, including the subject matter and scope of the Regulation (Articles 1 and 2) and the definitions of key terms used in the Regulation (Article 3). This sections also sets out anti-circumvention rules for providers in scope of this Regulation (Article 4) and obligations on identified providers to notify and undergo an independent audit of a compliance plan (Article 5).
Chapter II contains provisions on the delayed access of minors to social media, laying down that providers of services that have specific features and that constitute social networking services or video-sharing platforms services, or both, shall not allow minors below the age of 15 to create an autonomous account. Furthermore, providers of those services may allow guardians to set up accounts for minors above the age of 13 with limited age-appropriate features to access the service (Article 6). Where providers of video-sharing platform services can demonstrate that they are an age-appropriate service, they may allow guardians to exceptionally enable, access also to minors below 13 years by means of accounts that are created and supervised by the guardians themselves (Article 7).
Chapter III sets out provisions on safety by design applicable to providers of online social networking services, of video-sharing platform services, of AI companions, of general conversational chatbots and of online games.
Section 1 lays down general provisions applicable to providers of online social networking services, of video-sharing platform services, of AI companions, of general conversational chatbots, of online games, and of software application stores. This section specifies that the requirements laid out in this Chapter also apply to unregistered recipients of the service or users of the system, and that it is only possible to derogate from those requirements when it has been established that the recipient of the service or user of the system is an adult, making use of age assurance in accordance with Chapter V (Article 8).
Section 2 lays down provisions applicable to online social networking services and video-sharing platform services. In particular, those services are prohibited from designing, organising or operate their services in a manner that is intended, or can reasonably be foreseen, to encourage compulsive or excessive use of the service by minors and should put in place effective time-management tools which protects core sleep hours and school time of minors (Article 9). Those providers that use recommender systems are obliged to design the information suggested and the optimisation of their recommender systems to minors in way that ensures a high level of privacy, safety and security of minors (Article 10). Furthermore, those providers shall put in place appropriate and proportionate measures to ensure that settings are set by default to a high level of privacy, security and safety of minors which cannot be changed unless minors have explicitly consented to such changes. Those providers shall ensure that features or settings which have any actual or foreseeable negative effects on

minors? privacy, safety and security are not available to minors (Article 11). Those online social networking services and video-sharing platform services are also obliged to put measures in place that ensure a high level of privacy, safety and security of minors as regards contacts between minors and other recipients of the service (Article 12). Finally, the same providers shall ensure that, before an economic transaction takes place, it is transparent to the minor that this is an economic transaction, and that their still developing commercial literacy is not exploited by design, organisation or operation choices which may lead to excessive, impulsive or unwanted spending, which includes not exposing minors to variable reward systems (Article 13).

Section 3 lays down provisions applicable to AI companions and general conversational chatbots. In particular, this section obliges providers to implement safety by design provisions related to addictive design, safe settings and transparency of commercial transactions set out by Article 9, 11 and 13 of Section 2, as well as specific rules tailored to these systems (Article 14). These rules require providers of AI companions and of general conversational chatbots to put in place strong child-safety protections, including designing the systems so minors are not exposed to features that are likely to create emotional dependencies, preventing harmful interactions, and carrying out testing and post-market monitoring to identify and mitigate harms to minors? safety, health, fundamental rights and well-being and development. Where such systems are deployed as a functionality of an online social networking services, of a video-sharing platform services, of an online game, the providers of those services should ensure that AI companions and general conversational chatbots are not automatically activated, that minors have the possibility to opt out of their used, where enabled, and are not encouraged to use them.

Section 4 lays down provisions applicable to online games. In particular, this section obliges providers to implement safety by design provisions related to addictive design and safe settings set out by Article 9, 11 and 12 of Section 2, as well as specific rules tailored to online games (Article 15). These rules include that online games shall implement safeguards to prevent the online games from being used to entice the minors to initiate contacts on other services which may pose a risk to their privacy, safety and security. Where providers of video gaming platforms allow recipients to create video games the provider shall put in place the necessary software and organisational to allow those video games to comply with the obligations set out in Article 15(1) and (2) and Articles 18 and 20.

Section 5 lays down provisions for age-appropriate access applicable to providers of software application stores. This section obliges those providers to put in place an age-rating system to establish the age-appropriateness of software applications and to assess the age of the recipient of the service through age assurance. Where a software application is not considered age-appropriate, the provider of the software application store shall not allow minors access to such software applications that are age-inappropriate (Article 16). Finally, this section encourages the drawing up of codes of conduct to contribute to the harmonised establishing and application of age-rating systems (Article 17).

Section 6 sets out additional general obligations on agency of minors and empowering tools for minors and guardians applicable to providers of social networking services, of video-sharing platforms services, of AI companions, of general conversational chatbots and of video gaming platforms and games. This section specifies that those providers are obliged to ensure that features, communication, information, user-control tools and mechanisms of the service, warnings, and any other information referred to in Chapter III are easily accessible to all minors and presented in a way that minors can understand. Providers of very large online

platforms within the meaning of Article 33(1) of Regulation (EU) 2022/2065 are obliged to present such information in the in the official language(s) of the Member State(s) the service is provided in. Furthermore, providers of social networking services, of video-sharing platforms services, of AI companions, and of general conversational chatbots, and of video gaming platforms are obliged to provide tools enabling minors to control content, their settings and provide to feedback which should have a durable effect on content recommended (Article 18). This section also specifies that those providers are obliged to put in place child-friendly reporting mechanisms and support tools for minors (Article 19) as well as effective, easy to use tools for guardians. Moreover, this section obliges those providers of social networking services, of video-sharing platforms services, of AI companions, and of general conversational chatbots, and of online games to encourage the rollout of such tools and requires providers of very large online platform within the meaning of Article 33(1) of Regulation (EU) 2022/2065 to ensure that these tools for guardians are interoperable with tools for guardians provided by third parties, in accordance with conditions set out by Article 6 of Regulation (EU) 2022/1925 (Article 20). Finally, this section sets out that minors and guardians have the right to lodge a complaint with the competent authority against providers of social networking services, of video-sharing platforms services, of AI companions, and of general conversational chatbots, and of online games alleging an infringement to this Regulation, minors and guardians have the right to mandate a body, organisation or association to exercise the rights conferred by this Regulation on behalf of the minor or their guardian (Article 21).

Section 7 contains other provisions concerning due diligence for a safe environment online It sets out the monitoring obligations for very large online platforms (Article 22), provisions on drawing up codes of conduct (Article 23), and the obligation for services to have in place legal representatives (Article 24). Finally, it sets out that the Commission is empowered to adopt delegated acts to supplement the measures listed in this Chapter to ensure a high level of privacy, safety and security of minors on their service (Article 25).

Chapter IV contains the obligation to verify parental responsibility (Article 26).

Chapter V contains provisions concerning age assurance.

Section 1 sets out the general principles for age assurance. This section specifies that where providers in scope of Chapters II and III have to implement age assurance solutions, they shall provide a high level of accuracy, reliability, robustness, non-intrusiveness, privacy and non-discrimination, and that self-declaration is not sufficient for compliance with this Regulation (Article 27), it also sets out the specific rules for data protection in age assurance (Article 28).

Section 2 complements this with specific obligations for age assurance, setting out that for the purpose of compliance with Articles 5 and 6, providers should put in place age verification, and for the purpose of compliance with Chapter III they may use both age verification and other age assurance solutions under specific conditions (Article 29), complemented by an empowerment for the Commission to specify details set out in the age assurance Chapter (Article 30). Furthermore, this section requires Member States to take the necessary measures to ensure the availability of different means of obtaining a proof of age attestation to verify the minimum age and to make available at least one age verification solution (Article 31). Finally, this section contains measures on age verification for existing accounts (Article 32).

Chapter VI contains a provision on measures for the Member States to prepare and support minors as this Regulation becomes a reality (Article 33).

Chapter VII contains the provisions concerning the competences, supervision and enforcement of the provisions in this proposal that rely on the existing enforcement structures and frameworks under the Regulation (EU) 2022/2065 and Regulation (EU) 2024/1689 to avoid duplications and ensure consistency with the existing rules for intermediary services and AI systems (Article 34). Where the Commission initiates proceedings for services and systems within its exclusive competence, the Commission shall endeavour to adopt a final decision within 90 days and communicate the preliminary findings to the provider concerned within 30 days from the opening of proceedings (Article 35). Finally, it contains a provision on the financing of supervisory and enforcement activities by the Commission under this Regulation (Article 36) and provisions on the development of expertise and incident reaction mechanisms (Articles 37 and 38).
Chapter VIII contains the provisions on implementing and delegated acts (Articles 39 and 40) and Chapter IX contains the final provisions including on the review of the Regulation, inclusion of this Regulation in the Annex of the Representative Actions Directive (Article 41), and the entry into force and application (Articles 42 and 43).

2026/0286 (COD)
Proposal for a
REGULATION OF THE EUROPEAN PARLIAMENT AND OF THE COUNCIL
EU KIDS ACT - 'EU Keeping Internet Digital Spaces Accountable and Trustworthy'

THE EUROPEAN PARLIAMENT AND THE COUNCIL OF THE EUROPEAN UNION,
Having regard to the Treaty on the Functioning of the European Union, and in particular Article 114 thereof,
Having regard to the proposal from the European Commission,
After transmission of the draft legislative act to the national parliaments,
Having regard to the opinion of the European Economic and Social Committee1,
Having regard to the opinion of the Committee of the Regions2,
Acting in accordance with the ordinary legislative procedure,
Whereas:
(1)
Online social networking services, video-sharing platform services, artificial intelligence (?AI?) companions, general conversational chatbots, online games, and software application stores that have become an important part of the daily lives of minors. Such information society services and AI systems provide opportunities for minors in the areas of identity development, learning, education, civic participation, relationship development, communication, connection and creativity. At the same time, some of those services and systems, including because of their design, may create risks to minors? privacy, safety and security. These risks include, for example, exposure to illegal or content and risks resulting from cyberbullying or contact from individuals seeking to harm minors. Minors may also face risks as vulnerable consumers through commercial practices that may be manipulative and cause unwanted spending, compulsive and addictive behaviour. These risks can originate from the direct experience of the minor with the online social networking services, video-sharing platform services, AI companions, general conversational chatbots, online games, and software application stores or from the actions of other users on the platform or the systems.
(2)
A Special panel of experts on child safety online (?Special Panel?) was established to provide advice to the Commission on a European approach on child safety online. The report of the Co-Chairs of the Special Panel was presented in July 2026 and is based on six guiding principles: a developmental approach, equality and diversity, protection of minors, accountability of digital services and consumer rights, empowerment and media education and children?s rights and participation. In particular, the report recommends EU-wide access restrictions to social media, harmonised safety-by-design rules for social media, other digital services, online games and certain AI

1
OJ C , , p. .
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OJ C , , p. .

systems accessible to minors as well as proportionate, privacy-preserving age assurance systems. The intention is to cover the entirety of the digital environment to ensure an effective and comprehensive protection of minors online (social media+).

(3)
Member States are increasingly introducing, or are considering introducing, national laws to establish a minimum age for minors to access certain online services. Those diverging national laws negatively affect the internal market, which, pursuant to Article 26 TFEU, comprises an area without internal frontiers in which the free movement of goods and services and freedom of establishment are ensured, taking into account the inherently cross-border nature of the internet and online services and systems. The conditions for providers to restrict minors? access to certain services and systems, as well as obligations regarding the design of their services and systems, require harmonisation so as to create legal certainty for providers offering services and systems accessible to minors across the Union, and ensuring a harmonised level of protection for minors irrespective of their location in the Union.

(4)
Regulation (EU) 2022/2065 of the European Parliament and of the Council3 establishes a horizontal framework of due diligence obligations for providers of intermediary services, including specific obligations concerning the protection of minors online. In particular, Article 28 of that Regulation provides for obligations on providers of online platforms accessible to minors to put in place appropriate and proportionate measures to ensure a high level of privacy, safety, and security of minors, on their service. The Commission Guidelines on measures to ensure a high level of privacy, safety and security for minors online4 set out a non-exhaustive list of measures that providers of online platforms accessible to minors should put in place to comply with their obligation under Article 28(1) of Regulation (EU) 2022/2065.

(5)
This Regulation specifies and complements the relevant provisions of Regulation (EU) 2022/2065 as regards the protection of minors, in particular in order to ensure a high level of privacy, safety, and security of minors, taking into account the Guidelines and the report drawn up by the co-chairs of the Special Panel. To that end, this Regulation sets out rules for a harmonised minimum age for creating an account with online social networking services, video-sharing platform services, and rules for harmonised design requirements for such services, and for age assurance.

(6)
For that purpose, the provisions laying down a harmonised minimum age for creating an account with online social networking services and video-sharing platform services, harmonised safety requirements for online social networking services, video sharing platform services, video gaming platform services and software application stores, and harmonised rules regarding age assurance online and parental responsibility, insofar as they operationalise the obligation to put in place a high level of privacy, safety and security of minors, specify Article 28 of Regulation (EU) 2022/2065.

(7)
Nothing in this Regulation should be construed as an imposition of a general monitoring obligation or a general active fact-finding obligation, or as a general obligation for providers of intermediary services to take proactive measures in relation to illegal content.

3
Regulation (EU) 2022/2065 of the European Parliament and of the Council of 19 October 2022 on a Single Market For Digital Services and amending Directive 2000/31/EC (Digital Services Act) (OJ L 277, 27.10.2022, p. 1, ELI: http://data.europa.eu/eli/reg/2022/2065/oj).

4
Communication from the Commission ? Guidelines on measures to ensure a high level of privacy, safety and security for minors online, pursuant to Article 28(4) of Regulation (EU) 2022/2065 (OJ C, C/2025/5519, 10.10.2025, ELI: http://data.europa.eu/eli/C/2025/5519/oj).